

Opinion of the Court

context of summary affirmances, “‘unexplicated’” decisions may “‘sett[le] the issues for the parties, [but they are] not to be read as a renunciation by this Court of doctrines previously announced in our opinions.’”⁵⁵ Much the same may be said here. *Apodaca*’s judgment line resolved that case for the parties in that case. It is binding in that sense. But stripped from any reasoning, its judgment alone cannot be read to repudiate this Court’s repeated pre-existing teachings on the Sixth and Fourteenth Amendments.⁵⁶

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There’s another obstacle the dissent must overcome. Even if we accepted the premise that *Apodaca* established a precedent, no one on the Court today is prepared to say it was rightly decided, and *stare decisis* isn’t supposed to be the art of methodically ignoring what everyone knows to be true.⁵⁷ Of course, the precedents of this Court warrant our deep respect as embodying the considered views of those who have come before. But *stare decisis* has never been treated as “an inexorable command.”⁵⁸ And the doctrine is “at its weakest when we interpret the Constitution”⁵⁹ be-

⁵⁵ *Mandel v. Bradley*, 432 U.S. 173, 176 (1977) (*per curiam*) (quoting *Fusari v. Steinberg*, 419 U.S. 379, 392 (1975) (Burger, C. J., concurring); see also *Bush v. Vera*, 517 U.S. 952, 1001–1002 (1996) (THOMAS, J., concurring in judgment).

⁵⁶ The dissent floats a different theory when it suggests this Court’s denials of certiorari in cases seeking to clarify *Apodaca* is evidence of *Apodaca*’s precedential force. *Post*, at 145–146. But “[t]he significance of a denial of a petition for certiorari ought no longer . . . require discussion. This Court has said again and again and again that such a denial has no legal significance whatever bearing on the merits of the claim.” *Darr v. Burford*, 339 U.S. 200, 226 (1950) (Frankfurter, J., dissenting).

⁵⁷ R. Cross & J. Harris, *Precedent in English Law* 1 (4th ed. 1991) (attributing this aphorism to Jeremy Bentham).

⁵⁸ *Pearson v. Callahan*, 555 U.S. 223, 233 (2009) (internal quotation marks omitted).

⁵⁹ *Agostini v. Felton*, 521 U.S. 203, 235 (1997).